

{courtLevel} COURT — {county} COUNTY, COMMONWEALTH OF KENTUCKY — CASE NO.
{caseNumber}

COMMONWEALTH OF KENTUCKY,

v.

JAMIE Q. SAMPLE,
Movant.

DOCKET NO.: [TO BE CONFIRMED]

MOTION TO VOID CONVICTION AND SEAL RECORDS PURSUANT TO KRS 218A.276

STATUTORY AUTHORITY

KRS 218A.276(1) — The fixed offence list: possession of marijuana under KRS 218A.1422, synthetic drugs under KRS 218A.1430, or salvia under KRS 218A.1451.

KRS 218A.276(8) — After satisfactory completion of treatment, probation or other sentence on a first conviction on the subsection (1) list, the court may void the conviction.

KRS 218A.276(9) — On voiding, the court shall order the records sealed. Records excepted under KRS 27A.099 are not sealed.

KRS 218A.276(10) — The proceedings may not be used against the defendant except to determine eligibility, and the participant need not disclose them.

KRS 27A.099 — Records excepted from sealing.

KRS 431.078(2) — The five-year period does not apply where the conviction was voided under KRS 218A.276(8). Carried as a packet instruction for onward routing, not as relief requested in this motion.

I. JURISDICTION AND VENUE

1. This Court has jurisdiction over this matter as the {courtLevel} Court of EXAMPLE County, Kentucky, where the proceedings occurred.

2. Venue is proper in this Court because the criminal proceedings that are the subject of this motion occurred in EXAMPLE County, Kentucky.

II. PARTIES

3. Movant is JAMIE Q. SAMPLE, whose address is 000 EXAMPLE STREET, EXAMPLE CITY, KY 00000.

4. Movant has also been known as: J. Q. SAMPLE.

III. FACTS AND CASE HISTORY

5. Movant was charged with possession of marijuana by [ARRESTING AGENCY TO BE CONFIRMED].
[ARREST DATE TO BE CONFIRMED]

6. The matter was assigned Docket Number [TO BE CONFIRMED].

7. The matter was resolved with the following disposition: [DISPOSITION TO BE CONFIRMED].
[DISPOSITION DATE TO BE CONFIRMED]

IV. ELIGIBILITY ALLEGATIONS

8. Movant may be eligible for sealing on the following basis: [ELIGIBILITY BASIS TO BE CONFIRMED].

IMPORTANT: Movant may be eligible; this document does not guarantee eligibility or a court outcome.

V. REQUESTED RELIEF

WHEREFORE, Movant respectfully requests that this Court:

- (a) Grant this Motion and enter an Order directing the sealing of the records of the case identified in this motion, except records excepted by KRS 27A.099 in the above-captioned matter;
- (b) Direct all criminal justice agencies having custody of such records to void and seal all records relating to this matter; and
- (c) Grant such other and further relief as this Court deems just and appropriate.

VI. VERIFICATION

JAMIE Q. SAMPLE
000 EXAMPLE STREET, EXAMPLE CITY, KY 00000

Date: _____

[NOTE: Date of birth and Social Security Number should be added by movant if required by the applicable form or local court rules.]

VII. CERTIFICATE OF SERVICE

By mail or hand delivery on the county or Commonwealth's attorney that prosecuted the case.

I certify that on _____, I served a copy of this Motion upon the county attorney or the Commonwealth's attorney that prosecuted the case at the following address:

[PROSECUTING ATTORNEY ADDRESS — PARTICIPANT SUPPLIES; NO SOURCE READ FOR THIS TRACK RECORDS IT]

Service method: [personal delivery / first-class mail / other as permitted by applicable court rules]

JAMIE Q. SAMPLE

Date: _____

ATTACHMENTS

Attachments submitted with this motion:

- Certificate of Service

Prepared by movant using LegalEase RCAP. This is not an official court form.